KNOW YOUR LEGAL RIGHTS IN INDIA

A Citizen's Handbook — National Legal Services Authority (NALSA)

1. RIGHT TO FREE LEGAL AID (Article 39A)

Who is entitled?

Every person who cannot afford to engage an advocate due to poverty, indigence, or any other disability is entitled to free legal services under the Legal Services Authorities Act, 1987. This includes women, children, SC/ST members, industrial workmen, victims of mass disaster, persons in custody, and mentally ill persons.

How to apply?

Approach the District Legal Services Authority (DLSA) at your district court, State Legal Services Authority (SLSA), or National Legal Services Authority (NALSA). No fee is charged. The Authority will provide a lawyer at government expense. You can also call the Toll-Free Legal Aid Helpline: 15100.

2. RIGHTS OF AN ARRESTED PERSON (BNSS Sec. 47-60)

Right to know the grounds of arrest

Every person arrested must be informed of the grounds of their arrest at the time of arrest. This is a constitutional right under Article 22(1) and is codified in Section 47 of BNSS.

Right to inform a friend or relative

The arrested person has the right to have one friend, relative, or person known to him informed of his arrest and the place of detention as soon as practicable (Section 50 BNSS). Police must maintain an arrest memo.

Right to be produced before Magistrate within 24 hours

No person shall be detained in custody beyond 24 hours without being produced before a Magistrate (Article 22(2), Section 58 BNSS). The 24-hour period excludes travel time.

Right to remain silent

An accused has the right against self-incrimination under Article 20(3). No person can be compelled to be a witness against himself.

3. FILING AN FIR — RIGHTS OF COMPLAINANT

What is an FIR?

First Information Report (FIR) is a written document prepared by police upon receiving information about the commission of a cognisable offence. Under BNSS Section 173, the police are duty-bound to register an FIR for cognisable offences.

Zero FIR

A Zero FIR can be filed at any police station regardless of jurisdiction. The police must register the FIR and transfer it to the appropriate station. Introduced by the Supreme Court — now codified in BNSS Section 173(1) proviso.

If police refuse to register FIR

Complaint can be made to the Superintendent of Police (SP) under Section 173(4) BNSS. If SP is satisfied, he can direct registration of FIR. Alternatively, a complaint can be filed directly before the Magistrate under Section 175 BNSS.

4. IMPORTANT HELPLINES AND CONTACTS

Service	Helpline Number	Available
Legal Aid (NALSA)	15100	24x7
Police Emergency	100	24x7
Women Helpline	181	24x7
Child Helpline	1098	24x7
Cyber Crime	1930	24x7
Human Trafficking	1800-419-8588	24x7
Supreme Court Registry	011-23116400	Mon-Fri 10am-5pm